



AROR UNIVERSITY
OF ART, ARCHITECTURE,
DESIGN & HERITAGE,
SUKKUR, SINDH

CONSTITUTIONAL DEVELOPMENT IN PAKISTAN (1947–1956)

Course Instructor

Habib Ali



INTRODUCTION

- When Pakistan gained independence on **14 August 1947**, it lacked a home-grown constitution.
- The immediate challenge was to establish a **legal and administrative framework** for governance.
- The Constituent Assembly, created under the **Indian Independence Act of 1947**, was tasked with drafting a constitution suitable for the new state.



THE GOVERNMENT OF INDIA ACT 1935

- Pakistan adopted the **Government of India Act, 1935**, as an **interim constitution**.
- With necessary amendments, it provided the **constitutional machinery** until a new constitution could be framed.
- **Governor-General** (Quaid-i-Azam) became the key executive authority.
- This framework continued until **23 March 1956**, when the first constitution was enacted.



FIRST CONSTITUENT ASSEMBLY (1947–1954)

- **Date:**
 - It was inaugurated on **11 August 1947** under the presidency of **Quaid-e-Azam Muhammad Ali Jinnah**.
- **Total Members:**
 - Initially 69, then extended to 79
 - 44 seats for West Pakistan, 35 for East Pakistan.
 - It **elected M. A. Jinnah** as the **First Governor General** of Pakistan on 11 August 1947.
 - It established the **Basic Principles Committee**.
- **Representation:**
 - East Bengal: 44 seats.
 - West Punjab: 17 seats.
 - Sindh: 5 seats.
 - NWFP: 3 seats.
 - Balochistan: 1 seat.
- **Functions:**
 - It served as Pakistan's legislative body
 - It passed the Objectives Resolution on March 12, 1949.
 - It drafted proposals for the Constitution.
 - It managed interim governance.



THE BASIC PRINCIPLES COMMITTEE REPORTS

- **Functions:**
 - It was devised to frame the constitution of Pakistan in the light of the Objective Resolution.
- **Members:** 24
- **First Report (1950)**
 - It was submitted in Sept 1950
 - **Central Assembly (Two Houses)**
 - Upper House on a Parity Basis
 - Lower House on Popular Basis.
 - The President can be removed by a 2/3 majority
 - Adoption of Parliamentary System
 - Islam was declared the state religion.
 - East Pakistan opposed the scheme due to unequal representation.
- **Criticism:**
 - Reaction from East Pakistan
 - Little was mentioned about Islamic values
 - Thus, it was ultimately rejected



THE BASIC PRINCIPLES COMMITTEE REPORTS

- **Second Report (1952)**

- Khuwaja Nazim-ud-Din, the next PM submitted the 2nd Report in 1952.

- **According to this report**

- The President would be Muslim
- Central Assembly (Two Houses)
- Upper House (Parity Basis 120 (60 seats to each wing))
- Lower House (Parity Basis 400 (200 to each wing))

- **Criticism**

- East Pak was given the upper hand
- Activation of de-stabilizing forces
- Dismissal of the Khuwaja Nazimuddin's govt.



- **Third Report**

- **Equal Representation:**

- Only in Joint Sessions
 - While disparities in the Two Houses

- **Upper House:**

- East Pakistan: 10 Seats
 - West Pakistan: 40 Seats

- **Lower House:**

- East Pakistan: 165 Seats
 - West Pakistan: 135 Seats

- **Joint Session:**

- With Parity of 175 + 175



DISSOLUTION OF THE FIRST CONSTITUENT ASSEMBLY (1954)

- **Date:**
 - On **24 October 1954**, **Governor-General Ghulam Muhammad** dissolved the Constituent Assembly.
- **Justification:**
 - “Failure to produce a constitution and inefficiency.”
- **Maulvi Tamizuddin Khan**, Speaker of the Assembly, challenged the dissolution in court.
- The **Federal Court**, led by **Chief Justice Munir**, upheld the Governor-General’s action, introducing the **Doctrine of Necessity**, a controversial precedent in Pakistan’s constitutional history.



FORMATION OF THE SECOND CONSTITUENT ASSEMBLY (1955)

- **Formation:**
 - **Date:** It was created on 28th May 1955 under Governor General Ghulam Muhammad's Orders.
- **Leader:**
 - It was established by Governor-General Ghulam Muhammad (3rd Governor General)
 - Chaudhry Mohammad Ali (4TH Prime Minister & key figure in drafting the Constitution of 1956).
 - Abdul Jabbar Khan (Speaker).
- **Members:**
 - **Total Members:** 80
 - **Representation:** equal representation for East and West Pakistan (40 each).
- **Functions:**
 - Drafted and enacted the Constitution of 1956.
 - Addressed regional and linguistic tensions.
- **Achievements:**
 - Framed and passed the Constitution of 1956 (adopted on March 23, 1956).
 - Declared Pakistan an Islamic Republic.
 - Initiated One Unit Scheme, 30 Sept. 1955 (Solved political deadlock)



THE CONSTITUTION OF 1956

- **Promulgated on 23 March 1956:** Pakistan's first home-grown constitution.
- **Key Features:**
 - **The Islamic Republic of Pakistan** was established.
 - **Federal system** with two units: East and West Pakistan.
 - **Parliamentary form of government** with a **unicameral legislature**.
 - **The President** as head of state and the **Prime Minister** as head of government.
 - **Islamic provisions:** No law repugnant to the Qur'an and Sunnah; the President and PM must be Muslims.
 - **Fundamental Rights** guaranteed.
 - **Urdu and Bengali** declared national languages.
- **Weakness:** Political instability persisted; the constitution lasted only two and a half years.



CONCLUSION

- The constitutional development between 1947 and 1956 reflects Pakistan's struggle to balance **Islamic ideology, democracy, and regional diversity**.
- Despite challenges, the 1956 Constitution was a **milestone** that laid the foundation for future constitutional experiments and debates on **federalism, Islamization, and democracy** in Pakistan's political evolution.



REFERENCES

- Afzal, M. R. (2001). *Pakistan: History and Politics 1947–1971*. Oxford University Press.
- Chaudhry, M. A. (1956). *The Constitution of the Islamic Republic of Pakistan*. Government of Pakistan.
- Jalal, A. (1990). *The State of Martial Rule: The Origins of Pakistan's Political Economy of Defence*. Cambridge University Press.
- Khan, H. (2009). *Constitutional and Political History of Pakistan*. Oxford University Press.
- Rizvi, H. A. (2000). *Military, State, and Society in Pakistan*. Palgrave Macmillan.
- Zaidi, S. A. (2015). *Issues in Pakistan's Economy: A Political Economy Perspective* (3rd ed.). Oxford University Press.





Thank you for your time and attention!

Hopefully, I will see you in the next class. Until then, take care, & have a great day!

